

		Plaintiff is ordered to provide notice of the Court's ruling.
5	30-2026-01572567 Villas Aliento Partners, L.P. vs. McKeown	The Court has read and considered the Defendant's "Motion to Respond to Opposition and for Stay of Execution" (ROA 57). The Court takes Judicial Notice of the Defendant's Ex Parte Application for Stay of Execution of Judgment (ROA 55), Plaintiff's Opposition (ROA 61), 8/3/2026 Minute Order (ROA 62), Writ of Possession (ROA 53), Judgment-Unlawful Detainer (ROA 39), 7/23/2026 Minute Order (ROA 47), 7/20/2026 Minute Order (ROA 42) and 7/7/2026 Minute Order (ROA 25). In the Motion to Respond to Opposition, the Defendant attempts to relitigate the issues which were ruled on by this Court in the unlawful detainer action. An extensive trial occurred over multiple days (ROA 25 and ROA 42), resulting in the Court's decision of 7/23/2026 (ROA 47). A party appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Defendant does not present any evidence to support a legal basis to disturb the Court's judgment of 7/23/2026. As previously indicated in the 8/3/2026 Minute Order regarding the Defendant's request for a Stay of Execution of Judgment: Pursuant to Code of Civil Procedure section 918, the Court finds that Defendant has not established the extreme hardship necessary to warrant a stay of execution of judgment. The ordinary hardship and displacement attendant to the enforcement of a writ of possession following an eviction, without additional supporting circumstances do not constitute sufficient grounds for relief under the statute. The Court DENIES the Defendant's Ex Parte Application for Stay of Execution of Judgment. The Court DENIES the Defendant's Motion to Respond to Opposition. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout. The Court Clerk is to notify the parties of the Court's ruling.
6	30-2026-01581477 Gross vs. Gross	The Court has read and considered the Defendant's Demurrer to the Amended Complaint (ROA 42) and the Plaintiff's Opposition (ROA 50). The Court OVERRULES the demurrer. The Defendant is ordered to file an answer within 5 calendar days.